



POLICE DEPARTMENT

June 29, 2026

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Kelvin Nunez :

Tax Registry No. 957906 :

Manhattan Court Section :

Case No.

C-034831

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Emily Collins, Esq.
Laura Cecere, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. On or about July 13, 2025, Police Officer Kelvin Nunez, assigned to the Transit Bureau Anti-Terrorism Unit, while off duty and in Bronx County, wrongfully operated a motor vehicle while under the influence of alcohol, having blown a 0.307 BAC via breathalyzer exam. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

NY VTL § 1192 (2-a)(a)

PROHIBITED CONDUCT

OPERATING A MOTOR
VEHICLE WHILE UNDER
THE INFLUENCE OF
ALCOHOL/
AGGRAVATED DWI

2. On or about July 13, 2025, Police Officer Kelvin Nunez, assigned to the Transit Bureau Anti-Terrorism Unit, while off duty and in Bronx County, was wrongfully unfit for duty due to his ingestion of alcohol.

A.G. 304-04

FITNESS FOR DUTY

3. On or about July 13, 2025, Police Officer Kelvin Nunez, assigned to the Transit Bureau Anti-Terrorism Unit, while off duty, failed to safeguard his off-duty firearm, resulting in its loss and or theft.

A.G. 305-07, Page 1, Paragraph 1

FIREARMS GENERAL
REGULATIONS

4. On or about July 13, 2025, Police Officer Kelvin Nunez, assigned to the Transit Bureau Anti-Terrorism Unit, while off duty and in Bronx County, was wrongfully unfit for duty while armed with his off-duty firearm due to his ingestion of alcohol.

A.G. 304-04

FITNESS FOR DUTY

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 8, 2026.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. The Department entered into evidence the results of Respondent's breath analysis and field sobriety tests, photographs from the collision, and fitness for duty reports. A stenographic transcript of the trial record has been prepared and is available for the

Police Commissioner's review. Having evaluated all of the evidence in this matter, and in accordance with his plea, I find Respondent guilty of all four specifications and recommend a penalty of Forced Separation from the Department.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent pled guilty to the charged misconduct admitting to being armed while unfit for duty and operating a motor vehicle while under the influence of alcohol. Respondent acknowledged that because he failed to safeguard his off-duty firearm, it was lost or stolen.

During the mitigation hearing, Respondent testified that at around 2300 hours on July 12, 2025, he left his off-duty employment and drove to a party with friends in the Bronx. Respondent recounted that the event was a "reunion" of sorts with childhood friends, celebrating one of them visiting from the Dominican Republic. He recalled that during the three hours he was at the party, he had two beers and four to five cocktails made with cognac. Respondent also stated that aside from consuming a protein shake while at work, he had not eaten anything that day. (Tr. 23-28)

According to Respondent, after ingesting the alcohol he was lightheaded and not feeling well. As a result, he decided to go sit in his car until he felt better. Respondent recounted that he then changed his mind and "made the bad decision to actually drive and try to bring myself back home." Respondent explained that he is not familiar with the Bronx and was relying on the GPS in his car to guide him. He recounted that there was a detour that took him off the highway onto side streets near Hunt's Point. Respondent described coming to a halt at a stop sign and "falling asleep at the wheel." He asserted that the next thing he recalled was waking up when his car collided with a tractor trailer, which was parked approximately 45 feet away from the stop sign. (Tr. 28-30, 45-47; Dept. Exs. 4A-C)

Respondent testified that after the crash, he immediately got out of his car to see if anyone was injured. As was doing so, he noticed a “hostile” crowd, who he assumed were drawn by the noise coming up the street from a party. Respondent claimed that people in the crowd saw his shield, which was displayed on his belt. He alleged that they were “taunting” him, saying “he’s a cop,” and recalled that he “did not feel safe at all.” He stated that he “didn’t want to make a bad situation even worse seeing how hostile the crowd was. But involving a firearm would’ve been terrible.” Respondent decided to put the gun into his car and recalled that he removed it from his right hip, placed it on the driver’s seat of his car, and closed the door. He explained that his car doors lock automatically when the key fob is outside of the vehicle for a certain amount of time and because he had his keys with him, he believed the gun was locked in the car. However, Respondent later discovered that the collision disengaged the automatic locking mechanism, and the doors were unlocked. (Tr. 31-33, 48)

At some point, according to Respondent, uniformed police officers then arrived at the scene and he immediately identified himself as a member of the NYPD. He explained that they inquired about his firearm and when they went to retrieve it from the car it was missing. The officers recovered an open bottle of cognac, which was about two thirds empty from inside the vehicle. Respondent was taken to the 45th Precinct where field sobriety tests were administered which determined that Respondent “couldn’t keep his balance.” He submitted to a breathalyzer test which revealed that his Blood Alcohol Content (“BAC”) was 0.307.¹ Respondent acknowledged that he was found unfit for duty and arrested for driving while intoxicated. (Tr. 30-34, 48-49; Dept. Exs. 1, 2, 5A, 5B, 6, 7)

¹ The tribunal takes judicial notice that NYS Vehicle and Traffic Law §1192 sets forth: “No person shall operate a motor vehicle while such person has .08 of one per centum or more by weight of alcohol in the person's blood.”

Respondent testified that he has had two bariatric surgeries, a gastric sleeve in 2014 and a gastric bypass in 2019. He opined that because the surgeries dramatically decreased the size of his stomach, the BAC reading was higher than it otherwise would have been. During cross-examination, he admitted that he noticed his tolerance for alcohol had decreased after the first surgery. Respondent acknowledged that before he had the gastric bypass, his doctor instructed him “not to drink alcohol” after the surgery because “it will affect me in a bad way.” Respondent claimed that after receiving this admonition, aside from the date of this incident, he has not consumed any alcohol since undergoing gastric bypass surgery. Respondent testified that he was more intoxicated on the night of this incident than he had ever been in his life. When asked why he chose to drink on this occasion, Respondent explained that he was emotional seeing his friends and described the decision as a “mistake.” (Tr. 24-27, 35, 37-39, 41-42)

Respondent admitted that he pled guilty in his criminal case and, as part of the agreement, he attended counseling sessions three times a week. Without providing documentation, he claimed that after completing the requirements of the sentence, he continued the sessions with the same counselor, paying for them himself. Respondent asserted that the counseling has been helpful in many aspects of his life. (Tr. 34-35, 49)

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department’s Disciplinary System Penalty Guidelines (“Disciplinary Matrix”), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 7, 2015, has pled guilty to, and accordingly has been found Guilty of driving a motor vehicle while under the influence of alcohol; carrying a firearm while unfit for duty due to consumption of alcohol; and failing to secure his off-duty weapon, resulting in it being lost or stolen. Respondent has previously been the subject of formal discipline. In 2023, he forfeited 31 suspension days without pay after he pled guilty to failing to safeguard his off-duty firearm and failing to immediately report that the firearm was missing. Respondent testified that the gun was in a shopping bag in his car and he accidentally threw it away with other garbage when cleaning out the vehicle.

The Department Advocate argued that driving while intoxicated and failing to safeguard a firearm constitutes serious misconduct, particularly in light of Respondent's previous disciplinary history. They have recommended that Respondent be separated from the NYPD by filing for Vested Interest Retirement.

Counsel for Respondent, argued for a penalty short of separation from the Department. He pointed out Respondent's 11 years of service including performance evaluations, on which he has never been rated lower than "Exceeds Expectations." He further cited Respondent's voluntary continuation of counseling as well as Respondent's continuous cooperation with both the internal investigation and the criminal proceedings. Finally, counsel asserted that Respondent's BAC was inflated because of his bariatric surgeries, making the misconduct more akin to a run of the mill driving while intoxicated case.

After reviewing the evidence, I do not find these arguments to be persuasive. While the tribunal appreciates Respondent's alleged cooperation and continuation of counseling, presumably he participated, at least in part, hoping that he would benefit in some way in the

criminal and administrative proceedings. Moreover, Respondent admitted that he was aware of his heightened susceptibility to alcohol after undergoing medical procedures.

The misconduct committed by Respondent on this occasion as well as his prior disciplinary case reveals a shocking lack of good judgment. In getting behind the wheel and driving while severely intoxicated, he risked not only his life but also the lives of anyone in the path of his vehicle. In addition, his poor decision making, on this occasion and when he lost his firearm previously, has resulted in two guns that are presently unaccounted for and which may now be in the hands of a person who should not have them, potentially putting the public at risk.

According to the Disciplinary Matrix, the presumptive penalty for driving while intoxicated is the forfeiture of thirty (30) suspension days, twenty (20) vacation days, dismissal probation, cooperation with counseling and ordered breath testing. Here, however, the presence of certain aggravating factors requires that additional penalties be applied. In the instant matter, additional penalties apply for the following aggravating factors:

- firearm lost- 20 penalty days;²
- open container of alcohol in vehicle- 10 penalty days;
- driving with gun on person- 5 penalty days;
- collision with another vehicle- 5 penalty days.

When combined with the presumptive fifty (50) penalty days for driving while intoxicated, the total comes to ninety (90) days. (Matrix at pp. 39-40, 49)

The presumptive penalty for failure to safeguard a firearm, resulting in its loss or possession by another, is 20 days. (Matrix at p. 41) However, as referenced above, Respondent

² The tribunal acknowledges that while the loss of a firearm would also be an aggravating factor for DWI under the Matrix, in this case, Respondent was charged with that misconduct separately in Specification 3. As such, the penalty for that misconduct is addressed and accounted for by Specification 3.

has been disciplined before for the same misconduct. Under the standard of progressive discipline set forth in the Matrix, prior misconduct that resulted in a penalty of more than fifteen (15) days will result in an increased penalty for subsequent misconduct. "The second incident involving the same misconduct or misconduct carrying an equal or greater presumptive penalty than the prior act of misconduct, shall result in a penalty increase to 20-30 days and Dismissal Probation." (Matrix at p. 12) Therefore, a penalty of thirty (30) vacation days and Dismissal Probation is the appropriate penalty for this specification.

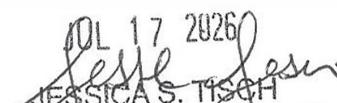
According to the Disciplinary Matrix, "in the event that the total number of penalty days is calculated at greater than ninety (90) days, the presumed penalty shall be termination or forced separation." In the instant matter, the total number of penalty days is one hundred (100). Taking into consideration Respondent's positive employment record, as well as his acceptance of responsibility, a penalty that provides for Respondent's separation from the Department, while allowing him to retire is reasonable and appropriate. I recommend that the Police Commissioner direct an immediate post-trial settlement negotiation, allowing Respondent to file for vested-interest retirement, along with whatever additional conditions she deems appropriate.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

JUL 17 2026

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER KELVIN NUNEZ
TAX REGISTRY NO. 957906
DISCIPLINARY CASE NO. C-034831

Respondent was appointed to the Department on January 7, 2015. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2023, 2024 and 2025. He has been awarded one medal for Excellent Police Duty.

In July 2023, Respondent forfeited 31 suspension days without pay after pleading guilty to (i) failing to properly safeguard his off-duty firearm, resulting in its loss, and (ii) failing to immediately report the missing firearm to a patrol supervisor. In connection with the underlying incident in that case, he was placed on Level 2 Discipline Monitoring from December 2022 through December 2023.

In connection with the instant matter, Respondent was suspended without pay from July 13 through August 11, 2025. He was thereafter placed on Level 2 Discipline Monitoring on August 21, 2025; that monitoring remains ongoing.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials